

1
2
3
4
5
6
7
8
9
0
1
2
3
4
5
6
7
8
9
0
1
2
3
4

AS AMENDED

By: Clinton and Dollens of the
House

and

Kirt of the Senate

[evictions - answer by a defendant - mediation -
proof of residency - judgment - effective date]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 12 O.S. 2021, Section 1148.6, is amended to read as follows:

Section 1148.6. A. In all cases in which the defendant wishes to assert title to the land or that the boundaries of the land are in dispute, he or she shall, before the time for the trial of the cause, file a verified answer or an affidavit which contains a full and specific statement of the facts constituting his or her defense of title or boundary dispute. If the defendant files such a verified answer or affidavit, the action shall proceed as one in ejectment before the proper division of the district court. If the defendant files an affidavit he or she shall file answer within ten (10) days after the date the affidavit is filed.

1 B. In all cases in which the cause of action is based on an
2 asserted breach of a lease by the defendant, or the termination or
3 expiration of a lease under which the defendant claims an interest
4 in the property in a verified answer or affidavit, the plaintiff may
5 proceed with the forcible entry and detainer action instead of an
6 ejectment action.

7 C. In all forcible entry and detainer cases where there are
8 minor children residing at the rental property, a defendant may
9 request the court order mediation between the parties prior to a
10 hearing or trial if a mediator is present that day. To substantiate
11 this request, the defendant shall attach proof of residency for said
12 minor children, including, but not limited to, school records or
13 shot records. This provision shall not be construed to extend or
14 delay a hearing or a trial. Should mediation be unsuccessful or
15 unavailable, the court may proceed to render a judgment in
16 accordance with applicable law.

17 D. No answer by the defendant shall be required before the time
18 for trial of the cause.

19 SECTION 2. This act shall become effective November 1, 2026.

20 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY
21 April 21, 2026 - DO PASS AS AMENDED
22
23
24